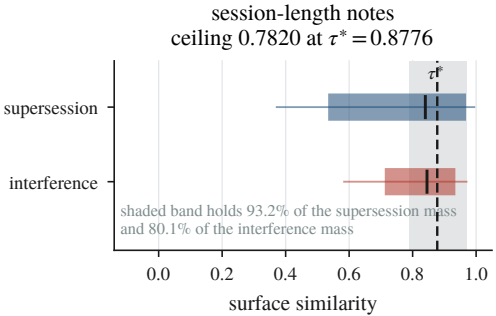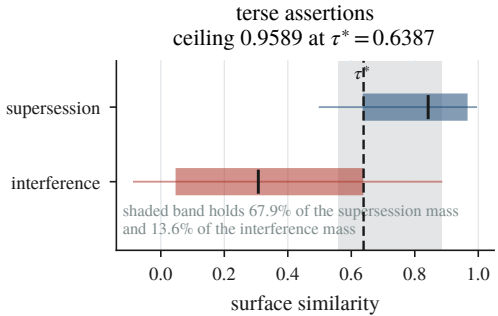one rule for both regimes reaches 0.7391, below either of the regimes it pools